REPUBLIC OF THE PHILIPPINES
CITY OF CAGAYAN DE ORO
OFFICE OF THE SANGGUNIANG PANLUNGSOD

EXCERPTS FROM THE MINUTES OF THE REGULAR SESSION OF THE CITY COUNCIL OF CAGAYAN DE ORO

ORDINANCE NO. 3375-93
Series of 1993

AN ORDINANCE PROHIBITING THE OPERATION OF CASINO AND PROVIDING PENALTY FOR VIOLATION THEREFOR

WHEREAS, the City Council established a policy as early as 1990 against CASINO under its Resolution No. 2295;

WHEREAS, on October 14, 1992, the City Council passed another Resolution No. 2673, reiterating its policy against the establishment of CASINO;

WHEREAS, subsequently, thereafter, it likewise passed Ordinance No. 3353, prohibiting the issuance of Business Permit and to cancel existing Business Permit to any establishment for the using and allowing to be used its premises or portion thereof for the operation of CASINO;

WHEREAS, under Art. 3, section 458, No. (4), sub paragraph VI of the Local Government Code of 1991 (Rep. Act 7160) and under Art. 99, No. (4), Paragraph VI of the implementing rules of the Local Government Code, the City Council as the Legislative Body shall enact measure to suppress any activity inimical to public morals and general welfare of the people and/or regulate or prohibit such activity pertaining to amusement or entertainment in order to protect social and moral welfare of the community;

NOW THEREFORE,
BE IT ORDAINED by the City Council in session duly assembled that:

SEC. 1. PROHIBITION OF CASINO OPERATIONS (ORD. 3375-93).

The operation of gambling CASINO in the City of Cagayan de Oro is hereby prohibited.

SEC. 2. PENALTIES AND SANCTIONS (ORD. 3375-93).

Any violation of this Ordinance shall be subject to the following penalties:

a) Administrative fine of Five Thousand Pesos (■5,000.00) shall be imposed against the proprietor, partnership or corporation undertaking the operation, conduct, maintenance of gambling CASINO in the City and closure thereof;

b) Imprisonment of not less than six (6) months nor more than one (1) year or a fine in the amount of Five Thousand Pesos (■5,000.00) or both at the discretion of the court against the manager, supervisor, and/or any person responsible in the establishment, conduct and maintenance of gambling CASINO.

SEC. 3. EFFECTIVITY (ORD. 3375-93).

This Ordinance shall take effect ten (10) days after its publication in a local newspaper of general circulation.

SEC. 4. PROHIBITION ON BUSINESS PERMITS FOR CASINO (ORD. 3353).

That pursuant to the policy of the city banning the operation of casino within its territorial jurisdiction, no business permit shall be issued to any person, partnership or corporation for the operation of casino within the city limits.

SEC. 5. REVOCATION AND PREMISES PROHIBITION (ORD. 3353).

That it shall be a violation of existing business permit by any persons, partnership or corporation to use its business establishment or portion thereof, or allow the use thereof by others for casino operation and other gambling activities.

SEC. 6. PENALTIES ON ESTABLISHMENT PERMITS (ORD. 3353).

Any violation of such existing business permit as defined in the preceding section shall suffer the following penalties, to wit:

a) Suspension of the business permit for sixty (60) days for the first offense and a fine of P1,000.00/day;

b) Suspension of the business permit for Six (6) months for the second offense, and a fine of P3,000.00/day;

c) Permanent revocation of the business permit and imprisonment of One (1) year, for the third and subsequent offenses.

SEC. 7. EFFECTIVITY (ORD. 3353).

This Ordinance shall take effect ten (10) days from publication thereof.

ENACTED, January 4, 1993 by the Sangguniang Panlungsod of Cagayan de Oro.

CERTIFIED CORRECT:

ATTY. JOSELITO C. TORRES
Secretary to the Sanggunian

ATTESTED:

ERASMO B. DAMASING
Vice Mayor & Presiding Officer

APPROVED, January 11, 1993:

PABLO P. MAGTAJAS
City Mayor